

MISSISSIPPI LEGISLATURE
2023 Regular Session
To: Ways and Means
By: Representative Horne

House Bill 711

AN ACT TO AMEND SECTIONS 19-9-11, 19-9-13 AND 21-33-307, MISSISSIPPI CODE OF 1972, TO MANDATE THE HOLDING OF AN ELECTION ON THE QUESTION OF ISSUING COUNTY OR MUNICIPAL BONDS; AND FOR RELATED PURPOSES.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF
MISSISSIPPI:

SECTION 1. Section 19-9-11, Mississippi Code of 1972, is amended as follows:

19-9-11. Before issuing any bonds for any of the purposes enumerated in Sections 19-9-1 * * * and 19-9-3, the board of supervisors shall adopt a resolution declaring its intention so to do, stating the amount of bonds proposed to be issued and the purpose for which the bonds are to be issued, and the date upon which the board proposes to direct the issuance of such bonds. Such resolution shall be published once a week for at least three (3) consecutive weeks in at least one (1) newspaper published in such county. * * * If no newspaper be published in such county, then such notice shall be given by publishing the resolution for the required time in some newspaper having a general circulation in such county and, in addition, by posting a copy of such resolution for at least twenty-one (21) days * * * at three (3) public places in such county. * * * An election on the question of the issuance of such bonds shall be called and held as is provided in Sections 19-9-13 * * * and 19-9-15. * * *

SECTION 2. Section 19-9-13, Mississippi Code of 1972, is amended as follows:

19-9-13. * * * Notice of the election * * * provided for in Section 19-9-11 * * * shall be signed by the clerk of the board of supervisors and shall be published once a week for at least three (3) consecutive weeks, in at least one (1) newspaper published in such county. The first publication of such notice shall be made not less than twenty-one (21) days prior to the date fixed for such election, and the last publication shall be made not more than seven (7) days prior to such date. If no newspaper is published in such county, then such notice shall be given by publishing the same for the required time in some newspaper having a general circulation in such county and, in addition, by posting a copy of such notice for at least twenty-one (21) days next preceding such election at three (3) public places in such county.

SECTION 3. Section 21-33-307, Mississippi Code of 1972, is amended as follows:

21-33-307. Before issuing any bonds for any of the purposes enumerated in Section 21-33-301, the governing authority of the issuing municipality shall adopt a resolution declaring its intention so to do, stating the amount of bonds proposed to be issued and the purpose for which the bonds are to be issued, and the date upon which the aforesaid authority proposes to direct the issuance of such bonds. Such resolution shall be published once a week for at least three (3) consecutive weeks in at least one (1) newspaper published in

such municipality. * * * If no newspaper be published in such municipality, then such notice shall be given by publishing the resolution for the required time in some newspaper having a general circulation in such municipality and, in addition, by posting a copy of such resolution for at least twenty-one (21) days * * * at three (3) public places in such municipality. The publication of the resolution may be made as provided in Section 21-17-19. * * * An election on the question of the bonds shall be called and held as is provided in Section 21-33-309. Notice of such election shall be signed by the clerk of the municipality and shall be published once a week for at least three (3) consecutive weeks in at least one (1) newspaper published in such municipality. The first publication of such notice shall be made not less than twenty-one (21) days prior to the date fixed for such election, and the last publication shall be made not more than seven (7) days prior to such date. If no newspaper is published in such municipality, then such notice shall be given by publishing the same for the required time in some newspaper having a general circulation in such municipality and published in the same or an adjoining county and, in addition, by posting a copy of such notice for at least twenty-one (21) days next preceding such election at three (3) public places in such municipality. * * *

Under no circumstances shall any municipality exceed the bond limit as set by statute for municipalities.

SECTION 4. This act shall take effect and be in force from and after July 1, 2023.

